

Significance — Cross-Case Propositions

What each judgment adds to the Section 135 jurisprudence, grouped by theme

Every “significance” takeaway from Cases 001–011, clustered by the proposition it illustrates so recurring themes and outliers are visible side by side. Each point is tagged with its source case.

THE REVERSE-ONUS PRESUMPTION (THIRD PROVISO)

001 Gaffar Miya **The reverse-onus presumption does real work.** Once an unauthorised means of abstraction is proved, the 'shall presume' clause compels a presumption of dishonest theft; the consumer must rebut with evidence of a lawful metered source — typically paid bills under the Section 106 onus (Mukesh Rastogi); a bare denial with no defence evidence will not suffice.

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003 Gaffar Miya **The reverse-onus presumption does real work.** Once an unauthorised means of abstraction is proved, the 'shall presume' clause compels a presumption of dishonest theft; rebuttal requires evidence of a lawful metered source — typically paid bills under the Section 106 onus (Mukesh Rastogi).

005 Mohd. Riyaz & Anr. **The reverse-onus presumption binds both accused.** Once the unauthorised means is proved, only evidence of lawful metered use (paid bills; s.106 onus, Mukesh Rastogi) rebuts the presumption — for user and registered consumer alike.

007 Devi Prasan **Proviso III and Section 106 IEA operate in tandem.** The statutory presumption plus the especial-knowledge burden require the occupant to explain the source running his appliances — silence or bald denial convicts.

010 Tilak Raj **No settlement, no rebuttal — presumption at full force.** Bill unpaid and no defence evidence; conviction rests squarely on the unrebutted presumption.

011 Altaf **The unmetered-premises template held.** No meter, distribution-box tap, unexplained load, no Genset, no paid bills — the compulsory presumption did the rest.

ADMISSIBILITY OF INSPECTION VIDEOGRAPHY (SECTION 65B)

001 Gaffar Miya **Section 65B certificate is not indispensable.** Absence of a 65B certificate for inspection videography is not fatal where the defence did not object when the electronic record was tendered — the objection goes to the mode of proof and is waived if not timely taken (Sonu @ Amar).

002 Sattar Miya **Section 65B certificate is not indispensable.** Absence of a 65B certificate for inspection videography is not fatal where the defence did not object when the electronic record was tendered (Sonu @ Amar).

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006 Mohd. Riyaz **A 65B certificate, where filed, forecloses the videography challenge.** With the certificate on record (Ex.PW4/A), the bare suggestion of fabrication had nothing to bite on — contrast companion cases resting on the waived-objection rule (Sonu @ Amar).

008 Ravinder **A filed 65B certificate forecloses the videography challenge.** With Ex.PW3/A on record, the fabrication suggestion had nothing to bite on.

009 Yasmeen **A filed 65B certificate forecloses the videography challenge.** With Ex.PW2/B on record, the video's admissibility was not seriously contestable.

DEFENCE CROSS-EXAMINATION AS ADMISSION

001 Gaffar Miya **Defence cross-examination can prove the case.** Incriminating suggestions put by defence counsel — here, that the wires ran from the ground-floor meter's input terminal — can themselves establish the factum of inspection and bind the accused (Balu Sudam Khalde).

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005 Mohd. Riyaz & Anr. **Appearing in the inspection video demands an explanation.** The accused's unexplained presence in the videography — whose genuineness he never disputed — undercut the plea that no inspection took place; the missing 65B certificate did not help absent a timely objection (Sonu @ Amar).

006 Mohd. Riyaz **Mass-raid testimony elicited by the defence proved the inspection.** Answers the defence itself drew out — that the premises were inspected in a mass raid and the load report prepared on observation — bound the accused (Balu Sudam Khalde).

008 Ravinder **'Planted evidence' suggestions need material.** Bare planted-wire suggestions, denied by the witness, cannot dent the presumption of regularity (Ashwani Kumar).

010 Tilak Raj **Cross-examination answers bound the accused.** Defence-elicited answers (no meter; accused's workers present) reinforced the prosecution.

NON-JOINING OF A PUBLIC WITNESS

001 Gaffar Miya **A public witness is not essential.** Non-joining of an independent witness does not vitiate an otherwise trustworthy official inspection without shown enmity (Ashwani Kumar; Sushil Sharma).

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004 Momin & Anr. **A public witness remains unnecessary.** Official inspection testimony, videographed and 65B-certified here, suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).

007 Devi Prasan **A recorded refusal answers the public-witness objection.** Where the inspection report notes locals were asked and refused, non-examination of an independent witness is no infirmity (Sushil Sharma).

PRESENCE, OCCUPANCY & IDENTITY OF THE USER

003 Gaffar Miya **Mere presence at the raided premises is not culpability.** The visiting married daughter found at the spot — who even falsely called herself a tenant — was dropped u/s 258 Cr.P.C.; liability confined to the person shown to be abstracting and using the electricity.

006 Mohd. Riyaz **A bill in someone else's name is no rebuttal.** The only electricity bill on record stood in the wife's name; under the s.106 onus (Mukesh Rastogi) the accused had to show paid bills for lawful supply to these premises.

007 Devi Prasan **A signed inspection report is powerful proof of presence and user status.** The accused's signature on the report and seizure memo — photographed as he signed — anchored the user finding and reduced the coercion plea to assertion.

007 Devi Prasan **The passer-by defence needs documents, not relatives.** A cousin's testimony backed only by an unattested photocopy rent agreement not proved per law, with no address proof of the accused's own, cannot discharge the shifted onus.

009 Yasmeen **Identification in the videography anchors user status.** PW-3 identified the accused in the 65B-certified video; identity of accused and premises never disputed.

009 Yasmeen **Ownership documents seized in investigation reinforce occupancy.** IO seized the premises' ownership papers, pre-empting a premises-not-mine defence.

011 Altaf **A representative's presence sufficed on the facts.** The person at the spot identified himself as the accused's representative; unchallenged videography tied the accused, as user, to the premises.

REGISTERED-CONSUMER LIABILITY & ABETMENT

004 Momin & Anr. **Registered consumers cannot hide behind the actual user.** Section 2(15) makes both user and registered consumer 'consumers'; a registered consumer who knowingly permits theft at her premises is punished as an abettor u/s 150 with the same punishment as the thief (Lokesh Chandela).

005 Mohd. Riyaz & Anr. **Registered consumers cannot hide behind the actual user.** Section 2(15) reaches the non-user registered consumer; knowing permission of theft at her premises is abetment u/s 150 carrying the principal's punishment (Lokesh Chandela).

008 Ravinder **A landlord present at the tap answers for it.** Premises unmetered, landlord found at the spot with the theft running; the tenant's later disappearance did not shift or dilute liability.

CONCEALED DEVICES & STOPPED METERS

004 Momin & Anr. **A change-over switch is a badge of dishonesty.** A concealed switch letting the occupant flip between metered and stolen supply — meter lying stopped, no Genset to explain it — itself evidences dishonest design.

004 Momin & Anr. **A stopped meter plus running appliances shifts the explanatory burden.** The third proviso presumption operates against user and registered consumer alike; only proof of lawful metered use (paid bills, s.106 onus, Mukesh Rastogi) rebuts it.

005 Mohd. Riyaz & Anr. **A stopped meter with a live load is itself the case to answer.** Where the meter reads stopped and the premises visibly consume power through a tampered service cable, the burden effectively shifts to the occupants to show a lawful source — and silence convicts.

SCOPE OF THE LICENSEE'S WORKS TAPPED

006 Mohd. Riyaz **Unmetered occupation plus a pole tap is the paradigm s.135(1)(a) case.** Where whole floors run with no meter and a cable traces to the licensee's pole, the offence is made out on the inspection evidence itself.

009 Yasmeen **Puncturing a service cable is a clause (a) tap.** Piercing the licensee's service cable to bleed supply is itself the actionable connection.

010 Tilak Raj **Street-light infrastructure counts as the licensee's works.** A tap on the street-light distribution box is as much a s.135(1)(a) connection as a pole hook.

COMMERCIAL USE & THE SIZE OF THE ASSESSMENT

004 Momin & Anr. **Commercial use aggravated the assessment.** The 2.102 KW load ran a collar-pasting business, producing a theft bill (Rs. 1,82,203) an order of magnitude above comparable domestic cases.

008 Ravinder **Commercial use multiplies the stakes.** 2.435 KW wooden-work load produced a Rs. 1,73,901 assessment at double the commercial tariff (Reg. 63).

010 Tilak Raj **Commercial theft is priced accordingly.** 2.518 KW wire-rolling load produced a Rs. 1,73,506 assessment at double commercial tariff.

SETTLEMENT OF THE THEFT BILL AS CORROBORATION

001 Gaffar Miya **Settling the theft bill can cut against the accused.** Payment of the civil liability during trial was read not as closure but as conduct corroborating guilt on the criminal charge.

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004 Momin & Anr. **Settlement corroborates guilt even if never paid.** Agreeing to settle the theft bill — despite failing to deposit the amount — was read as conduct inconsistent with innocence.

005 Mohd. Riyaz & Anr. **Settlement corroborates guilt even if never paid.** Settling the theft bill while pleading inability to deposit was read as conduct inconsistent with innocence.

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008 Ravinder **Settlement plus deposit still corroborates guilt.** Full payment of the settled bill was treated as conduct inconsistent with innocence, not closure.

009 Yasmeen **No settlement was needed for conviction.** Conviction rests wholly on the unrebutted presumption and inspection evidence.

011 Altaf **An NOC after settlement is not immunity.** Payment of the settled bill and an NOC from the licensee closed the civil account only; the s.135 prosecution proceeded to conviction.

011 Altaf **Settlement conduct still corroborates guilt.** Readiness to settle rather than protest a false bill was weighed against the accused.

CRIMINAL CONVICTION & CIVIL LIABILITY TOGETHER

007 Devi Prasan **Criminal conviction and civil recovery travel together.** The s.135 conviction was coupled with s.154(5) civil liability to be quantified at sentencing.

DELAY & PROCEDURAL INTEGRITY

007 Devi Prasan **Report–testimony variations must be material to matter.** 'Distribution box' in the report vs 'pole' in testimony was no contradiction where photographs traced the line from the pole-side box to the premises.

010 Tilak Raj **Delay did not dilute the case.** Offence 2017, s.251 notice 2024, judgment 2026 — the documented, videographed inspection held firm.

011 Altaf **Successive IOs are unobjectionable.** Two IOs each proving their own documents left no exploitable gap.

Compilation digest generated from the per-case summaries of Cases 001–011. It collates the courts' own reasoning for cross-referencing and is not a substitute for the full judgments.